

HOUSE No. 1673**The Commonwealth of Massachusetts**

PRESENTED BY:

Paul J. Donato

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the efficient management and operation of the registries of probate.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>1/16/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/3/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>2/3/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>2/3/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>2/3/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/3/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>3/6/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>3/6/2025</i>
<i>Joan Meschino</i>	<i>3rd Plymouth</i>	<i>3/6/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/6/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>3/6/2025</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>3/6/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/6/2025</i>
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>3/6/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/6/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>3/6/2025</i>
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>3/24/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>4/17/2025</i>

<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>4/17/2025</i>
<i>Orlando Ramos</i>	<i>9th Hampden</i>	<i>4/28/2025</i>

HOUSE No. 1673

By Representative Donato of Medford, a petition (accompanied by bill, House, No. 1673) of Paul J. Donato and others relative to the operation of the registries of probate. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the efficient management and operation of the registries of probate.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 217 of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by inserting, in line 14, after the word “including” the
3 following words:- the selection, appointment, and management of.

4 SECTION 2. Chapter 217 of the General Laws, as appearing in the 2018 Official
5 Edition, is hereby amended by striking out section 23 in its entirety and inserting in place thereof
6 the following:-

7 Section 23. The register of the respective courts of the probate and family court
8 department may, with the approval of the chief justice of the probate and family court, appoint
9 for a term of 3 years and may, with the approval of the chief justice, remove a first assistant
10 register of probate. Before entering upon the performance of his duties, a first assistant register
11 shall take the oath prescribed by the constitution. The appointments shall be as follows:

12 Barnstable, 1 first assistant register

- 13 Berkshire, 1 first assistant register
- 14 Bristol, 1 first assistant register
- 15 Essex, 1 first assistant register
- 16 Franklin, 1 first assistant register
- 17 Hampden, 1 first assistant register
- 18 Hampshire, 1 first assistant register
- 19 Middlesex, 1 first assistant register
- 20 Norfolk, 1 first assistant register
- 21 Plymouth, 1 first assistant register
- 22 Suffolk, 1 first assistant register
- 23 Worcester, 1 first assistant register.

24 SECTION 3. Chapter 217 of the General Laws, as appearing in the 2018 Official
25 Edition, is hereby amended by striking out section 23A in its entirety and inserting in place
26 thereof the following:-

27 Section 23A. In addition to the first assistant registers of probate provided for in section
28 23, the registers of the respective courts of the probate and family court department for the
29 following counties may, with the approval of the chief justice of the probate and family court,
30 appoint for terms of 3 years and may, with the approval of the chief justice, remove assistant
31 registers with the same powers and duties. The appointments shall be as follows:

32 Barnstable, 2 assistant registers

33 Berkshire, 1 assistant register

34 Bristol, 2 assistant registers

35 Essex, 3 assistant registers

36 Franklin, 1 assistant register

37 Hampden, 2 assistant registers

38 Hampshire, 1 assistant register

39 Middlesex, 4 assistant registers

40 Norfolk, 2 assistant registers

41 Plymouth, 2 assistant registers

42 Suffolk, 2 assistant registers

43 Worcester, 2 assistant registers.

44 SECTION 4. Chapter 217 of the General Laws, as appearing in the 2018 Official
45 Edition, is hereby amended by striking out section 23B in its entirety and inserting in place
46 thereof the following:-

47 Section 23B. The positions of administrative deputy assistant registers are hereby
48 eliminated. Notwithstanding the elimination of these positions or any other general or special law
49 to the contrary, a person employed as an administrative deputy assistant register of probate
50 pursuant to this section as of the effective date of this act shall continue to be employed as an

administrative deputy assistant register of probate and shall continue to serve in that capacity at the pleasure of the register of probate for that county. The position of administrative deputy assistant shall continue to meet the definitions of both confidential and managerial employees as those terms appear in chapter 150E and any individuals continuing to be employed in that capacity shall perform no official judicial duties.

SECTION 5. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 23D in its entirety and inserting in place thereof the following:-

Section 23D. In addition to the judicial case managers of the probate and family court provided for in section 23C, the first justices of the respective courts of the probate and family court department for the following counties may, with the approval of the chief justice of the probate and family court, appoint and may, with the approval of the chief justice, remove assistant judicial case managers with the same powers and duties. The appointments shall be as follows:

Barnstable, 2 assistant judicial case managers

Berkshire, 1 assistant judicial case manager

Bristol, 5 assistant judicial case managers

Essex, 6 assistant judicial case managers

Franklin, 1 assistant judicial case manager

Hampden, 5 assistant judicial case managers

71 Hampshire, 1 assistant judicial case manager

72 Middlesex, 8 assistant judicial case managers

73 Norfolk, 5 assistant judicial case managers

74 Plymouth, 5 assistant judicial case managers

75 Suffolk, 5 assistant judicial case managers

76 Worcester, 6 assistant judicial case managers.

77 SECTION 6. Section 27A of chapter 217 of the General Laws, as appearing in the 2018
78 Official Edition, is hereby amended by striking out, in line 4, the words “as such assistant”.

79 SECTION 7. Chapter 217 of the General Laws, as appearing in the 2018 Official
80 Edition, is hereby amended by striking out section 28 in its entirety and inserting in place thereof
81 the following:-

82 Section 28. The first justice of the Suffolk county court may, subject to the approval of
83 the chief justice of the probate and family court, appoint a clerk who may administer the oaths
84 required in probate proceedings that are not prescribed by law to be administered by the judge or
85 register and shall perform such clerical and other duties as may be required by the first justice.
86 The clerk may be removed by the first justice, with the approval of the chief justice. The Suffolk
87 county register of probate may, with the approval of the chief justice, designate 6 employees as
88 deputy assistant registers with the same powers as assistant registers and may revoke such
89 designation with the approval of the chief justice. Four of the deputy assistant registers shall
90 receive as additional compensation an amount equal to 10 per cent of the annual salary of the
91 Suffolk county register of probate. Two of the deputy assistant registers shall receive as

92 additional compensation an amount equal to 5 per cent of the annual salary of the Suffolk county
93 register of probate. Notwithstanding the above, any person designated as a deputy assistant
94 register of probate pursuant to this section as of the effective date of this act shall continue to
95 serve in that capacity, as previously provided by this section prior to its amendment and shall
96 continue to receive 15 per cent of the annual salary of the Suffolk county register of probate until
97 they are no longer so designated, as previously provided by this section prior to its amendment.
98 The positions of associate deputy registers, previously provided for, are hereby eliminated.
99 Notwithstanding the elimination of these positions or any other general or special law to the
100 contrary, a person designated as an associate deputy register of probate pursuant to this section as
101 of the effective date of this act shall continue to serve in that capacity and receive the additional
102 compensation of 7.5 per cent of the annual salary of the Suffolk county register of probate, as
103 previously provided by this section prior to its amendment, until they are no longer so
104 designated.

105 SECTION 8. Chapter 217 of the General Laws, as appearing in the 2018 Official
106 Edition, is hereby amended by striking out section 29 in its entirety and inserting in place thereof
107 the following:-

108 Section 29. The first justice of the Middlesex county court may, with the approval of the
109 chief justice of the probate and family court, appoint a clerk who may administer the oaths
110 required in probate proceedings that are not prescribed by law to be administered by the judge or
111 register and shall perform such clerical and other duties as may be required by the first justice.
112 The clerk may be removed by the first justice with the approval of the chief justice. The
113 Middlesex county register of probate may, with the approval of the chief justice, designate 9
114 employees as deputy assistant registers with the same powers as assistant registers and with the

approval of the chief justice remove a deputy assistant register. Six of the deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Middlesex county register of probate. Three of the deputy assistant registers shall receive as additional compensation an amount equal to 5 per cent of the annual salary of the Middlesex county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to be serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Middlesex county register of probate until they are no longer so designated, as previously provided by this section prior to its amendment.

SECTION 9. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29A in its entirety and inserting in place thereof the following:-

Section 29A. The first justice of the Dukes county court may, with the approval of the chief justice of the probate and family court, appoint a clerk who may administer the oaths required in probate proceedings that are not prescribed by law to be administered by the judge or register and shall perform such clerical and other duties as may be required by the first justice, with the approval of the chief justice. The clerk may be removed by the first justice with the approval of the chief justice. The Dukes county register of probate may, with the approval of the chief justice, designate 2 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. One deputy assistant register shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Dukes county register of probate. One deputy assistant register

shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the
Dukes county register of probate. Notwithstanding the above, any person designated as a deputy
assistant register of probate pursuant to this section as of the effective date of this act shall
continue to be serve in that capacity, as previously provided by this section prior to its
amendment and shall continue to receive 15 per cent of the annual salary of the Dukes county
register of probate until they are no longer so designated, as previously provided by this section
prior to its amendment.

SECTION 10. Chapter 217 of the General Laws, as appearing in the 2018 Official
Edition, is hereby amended by striking out section 29B in its entirety and inserting in place
thereof the following:-

Section 29B. The first justice for the Nantucket county court may, with the approval of
the chief justice of the probate and family court, appoint a clerk who may administer the oaths
required in probate proceedings that are not prescribed by law to be administered by the judge or
register, and shall perform such clerical and other duties as may be required by the first justice,
with the approval of the chief justice. The clerk may be removed by the first justice with the
approval of the chief justice. The Nantucket county register of probate may, with the approval of
the chief justice, designate 2 employees as deputy assistant registers with the same powers as
assistant registers and with the approval of the chief justice remove a deputy assistant register.
One deputy assistant register shall receive additional compensation in an amount equal to 10 per
cent of the annual salary of the Nantucket county register of probate. One deputy assistant
register shall receive additional compensation in an amount equal to 5 per cent of the annual
salary of the Nantucket county register of probate.

SECTION 11. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29C in its entirety and inserting in place thereof the following:-

Section 29C. The register of the Barnstable probate court may, with the approval of the chief justice of the probate and family court, designate 5 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Three deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Barnstable county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Barnstable county register of probate.

SECTION 12. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29D in its entirety and inserting in place thereof the following:-

Section 29D. The register of the Berkshire probate court may, with the approval of the chief justice of the probate and family court, designate 3 employees as deputy assistant registers with the same powers as assistant register and with the approval of the chief justice remove a deputy assistant register. Two deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Berkshire county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Berkshire county register of probate.

SECTION 13. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29E in its entirety and inserting in place thereof the following:-

Section 29E. The register of the Hampden probate court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Hampden county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Hampden county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity and shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Hampden county register of probate.

SECTION 14. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29F in its entirety and inserting in place thereof the following:-

Section 29F. The register of the Worcester probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Worcester county

register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Worcester county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Worcester county register of probate.

SECTION 15. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29G in its entirety and inserting in place thereof the following:-

Section 29G. The register of the Bristol probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive in addition to their salaries as employees, additional compensation in an amount equal to 10 per cent of the annual salary of the Bristol county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Bristol county register of probate.

SECTION 16. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29H in its entirety and inserting in place thereof the following:-

Section 29H. The register of the Hampshire probate and family court may, with the approval of the chief justice of the probate and family court, designate 3 employees as deputy

224 assistant registers with the same powers as assistant registers and with the approval of the chief
225 justice remove a deputy assistant register. Two deputy assistant registers shall receive additional
226 compensation in an amount equal to 10 per cent of the annual salary of the Hampshire county
227 register of probate. One deputy assistant register shall receive additional compensation in an
228 amount equal to 5 per cent of the annual salary of the Hampshire county register of probate.
229 Notwithstanding the above, any person designated as a deputy assistant register of probate
230 pursuant to this section as of the effective date of this act shall continue to serve in that capacity,
231 as previously provided by this section prior to its amendment and shall continue to receive 15 per
232 cent of the annual salary of the Hampshire county register of probate.

233 SECTION 17. Chapter 217 of the General Laws, as appearing in the 2018 Official
234 Edition, is hereby amended by striking out section 29I in its entirety and inserting in place
235 thereof the following:-

236 Section 29I. The register of the Plymouth probate and family court may, with the
237 approval of the chief justice of the probate and family court, designate 6 employees as deputy
238 assistant registers with the same powers as assistant registers and with the approval of the chief
239 justice remove a deputy assistant register. Four deputy assistant registers shall receive in addition
240 to their salaries as employees, additional compensation in an amount equal to 10 per cent of the
241 annual salary of the Plymouth county register of probate. Two deputy assistant registers shall
242 receive additional compensation in an amount equal to 5 per cent of the annual salary of the
243 Plymouth county register of probate.

SECTION 18. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29J in its entirety and inserting in place thereof the following:-

Section 29J. The register of the Essex probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as an assistant register and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Essex county register of probate. Two deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Essex county register of probate.

SECTION 19. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29K in its entirety and inserting in place thereof the following:-

Section 29K. The register of the Franklin probate and family court may, with the approval of the chief justice of the probate and family court, designate 3 employees as deputy assistant registers with the same powers as an assistant register and with the approval of the chief justice remove a deputy assistant register. Two deputy assistant registers shall receive in addition to his salary as an employee, additional compensation in an amount equal to 10 per cent of the annual salary of the Franklin county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Franklin county register of probate.

SECTION 20. Chapter 217 of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out section 29L in its entirety and inserting in place thereof the following:-

Section 29L. The register of the Norfolk probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as an assistant register and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Norfolk county register of probate. Two deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Norfolk county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Norfolk county register of probate until they are no longer so designated, as previously provided by this section prior to its amendment.